



CHAPTER iii.

An Act to constitute the borough of East Ham in the county of Essex a county borough to make provision in regard to the granting of superannuation allowances to officers and servants of the Corporation to make further provision in regard to the electricity undertaking of the Corporation and the health local government and improvement of the borough and for other purposes. A.D. 1914.

[30th April 1914.]

WHEREAS the borough of East Ham in the county of Essex (in this Act called "the borough") is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas the population of the borough according to the census of 1911 was 133,504 and the present population thereof is estimated to be upwards of 146,000 and it is expedient that the borough should be constituted a county borough:

And whereas it is expedient to empower the Corporation to establish a fund for the granting of superannuation and other allowances to officers and servants of the Corporation:

And whereas the Corporation are the owners of the undertaking whereby the borough is supplied with electricity and it is expedient to confer further powers upon the Corporation in relation to that undertaking:

And whereas it is expedient to make further and better provision in regard to streets and buildings in the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough be enlarged as in this Act provided:

A.D. 1914. And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the East Ham Corporation Act 1914.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—County Borough.
 Part III.—Superannuation and Provident Fund.
 Part IV.—Electricity.
 Part V.—Streets and Buildings.
 Part VI.—Infectious Disease and Sanitary Provisions.
 Part VII.—Financial and Rating Provisions.
 Part VIII.—Workmen's Compensation Fund.
 Part IX.—Miscellaneous provisions.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of East Ham;

“The borough” means the borough of East Ham;

- “The council” means the council of the borough;
- “The county council” means the council of the administrative county of Essex;
- “The county” means the administrative county of Essex;
- “County councillors” means county councillors for the county;
- “The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- “The appointed day” means the first day of April 1915;
- “The town clerk” “the treasurer” “the surveyor” and “the medical officer” mean respectively the town clerk the treasurer the surveyor and the medical officer of health of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;
- “Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;
- “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;
- “Daily penalty” “statutory borrowing power” and “statutory security” have the meanings assigned to them respectively by section 3 of the Act of 1903;
- “Revenues of the Corporation” include the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation;
- “The Act of 1898” and “the Act of 1903” mean respectively the East Ham Improvement Act 1898 and the East Ham Improvement Act 1903.

PART II.

COUNTY BOROUGH.

4. This Part of this Act shall (except so far as is otherwise expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith) come into operation on the appointed day.

Commence-
ment of this
Part of Act.

A.D. 1914.

Constitution
of county
borough.

5.—(1) The borough shall be constituted a county borough and all the provisions of the Act of 1888 respecting county boroughs shall apply to the borough as if the borough had been named in the Third Schedule to that Act and as if Essex had been specified in that schedule as the county in which the borough should be deemed for the purposes of the Act to be situate.

(2) Provided that for the purposes of the said provisions the expression “the appointed day” shall have the meaning assigned to it by this Act.

Adjustment
between new
county bo-
rough and
county or
county and
other county
boroughs.

6.—(1) An equitable adjustment shall be made respecting the distribution of the proceeds of the local taxation licences of the estate duty grant and of the Local Taxation (Customs and Excise) duties and respecting all other financial relations or questions between the county and the borough and in any case where the constitution of the county borough by this Act affects the distribution of the said proceeds between the county on the one hand and any other county borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution and financial relations or questions equitable adjustments may be made between the areas interested :

For the purposes of this subsection or of anything done or to be done in pursuance thereof any reference in the said subsection to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of section 17 of the Finance Act 1907 as amended by section 6 of the Finance Act 1908 section 88 of the Finance (1909–10) Act 1910 the Revenue Act 1911 and any subsequent Act have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subsection (1) of this section may be made by agreement between the councils of the county the borough and the county boroughs affected and if such adjustment has not been made before the thirtieth day of September one thousand nine hundred and fifteen then on the application of any of the councils interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustment as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between adminis-

trative counties and county boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Act or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly :

Provided that—

- (a) in lieu of subsection (6) of section 61 of the Act of 1888 subsections (1) and (5) of section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this section and to the cost of those inquiries ; and
- (b) subsection (6) of section 32 of the Act of 1888 shall apply to any agreement or any award made under this section.

(4) Any such adjustment shall be made as if the appointed day were the first day of April one thousand nine hundred and fourteen and not the first day of April one thousand nine hundred and fifteen.

7. The following provisions for the protection of the county council shall except so far as may be otherwise agreed between the county council and the Corporation apply and have effect (that is to say) :—

For protection of Essex County Council.

- (1)—(a) Any institution situate in the borough and which at the date of the passing of this Act has been provided by the county council under the provisions of or under any authority granted under the National Insurance Act 1911 and any fittings stores and appliances provided in any such institution before the appointed day shall as from that day be transferred to and vested in the Corporation for all the estate and interest therein of the county council and there shall be paid by the Corporation to the county council out of the borough fund and borough rate in consideration of such transfer such sum as shall

A.D. 191 .
—

before the passing of this Act have been or as may thereafter be agreed upon between the county council and the Corporation or as in default of such agreement may be settled by arbitration in the manner provided by the Act of 1888 :

- (b) In the event of the amount of the consideration for the transfer of any property which by virtue of this section may be transferred to and vested in the Corporation not being ascertained before the appointed day the date of the final ascertainment shall for the purposes of the stamp duty (if any) which may be payable under section 12 of the Finance Act 1895 be treated as the date of vesting but nothing herein contained shall prejudice any question as to whether stamp duty is payable under the provisions of that section in respect of any such transfer and vesting :
- (2) All teachers and other officials employed on the appointed day by the county council exclusively for the purposes of education other than elementary within the borough shall as from that day be taken by the Corporation into their service in the same or a similar capacity and employment and on the same terms and conditions as those respectively in at and on which such servants were respectively employed by the county council on the appointed day :
- (3) Any difference arising between the county council and the Corporation under the provisions of this section the determination whereof is not otherwise therein expressly provided for shall on the application of either of them be referred to and determined by an arbitrator to be agreed upon between them or failing agreement appointed by the Local Government Board and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

As to borrowing powers of county council.

8.—(1) For a period of one year from the appointed day in ascertaining for the purposes of section 69 of the Act of 1888 the annual rateable value of the property in the county there shall be added to the total rateable value of the county as appearing in the standard or basis for the county rate for the time being the rateable value at which the parish of East Ham was assessed in the standard or basis for the county rate in force immediately preceding the appointed day.

(2) In calculating the amounts which the county council may borrow under the Act of 1888 or any other enactment any amounts borrowed by the county council for the purpose of any adjustment under this Act shall not be reckoned. A.D. 1914.

9.—(1) An equitable adjustment shall be made between the county and the borough respecting the interest of the borough in any compensation fund constituted under section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act. Adjustment for purposes of Licensing (Consolidation) Act 1910.

(2) Such adjustment shall be made by agreement between the compensation authorities (as defined by the Licensing (Consolidation) Act 1910) for the county and for the borough within twelve months from the appointed day or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly.

10.—(1) Subject to the provisions of section 54 of the Act of 1888— Alteration in county councillors and county aldermen.

(a) The number of county councillors for the county as reduced under the provisions of the Southend-on-Sea Corporation Act 1913 shall be further reduced from seventy-seven to seventy-one and the order dated the fourteenth day of August one thousand eight hundred and eighty-eight as altered by subsequent orders of the Local Government Board and by the Southend-on-Sea Corporation Act 1913 shall be further altered and shall have effect accordingly and any casual vacancy occurring in the office of county councillor for any electoral division of the borough between the date of this Act and the appointed day shall not be filled up:

(b) The number of aldermen for the county may remain unaltered until the ordinary day of election of aldermen in the year one thousand nine hundred and sixteen but at that election eleven aldermen only shall be elected in place of those who then go out of office Provided that no election to fill a casual vacancy among the aldermen who will go out of

A.D. 1914.

office in the year one thousand nine hundred and sixteen shall be held until their number has been reduced to less than eleven.

(2) Save as aforesaid no other county councillor or county alderman shall be deemed to lose his qualification or to vacate his office by reason of the constitution of the county borough.

Compensation to existing officers.

11.—(1) Every officer or servant of or paid by the county council or of or paid by the standing joint committee of the county and every other officer or servant who by virtue of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the borough fund and borough rate and the provisions of subsections (2) to (7) of that section shall apply with the necessary modifications (including the substitution of the Local Government Board for the Treasury) Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of subsection (1) of this section any officer or servant to whom that subsection applies and whose services are dispensed with or whose salary is reduced by the county council or the standing joint committee of the county or any other authority including the Corporation within five years from the appointed day because his services are not required or his duties are diminished in consequence of this Part of this Act and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Part of this Act.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

12.—(1) The Insurance Commissioners may at any time after the passing of this Act by order make such provision as appears to them to be necessary for enabling an insurance committee to be duly constituted under the National Insurance Act 1911 for the borough as soon as practicable after the appointed day and pending the constitution of such a committee may constitute a committee as nearly as may be in accordance with the provisions of section 59 of the National Insurance Act 1911 to act temporarily as the insurance committee for the borough.

A.D. 1914.
Provision as
to insurance
committee.

(2) An order under this section may provide for such financial adjustments and may contain such other consequential or supplemental provisions as appear to the Insurance Commissioners necessary or expedient.

(3) An order under this section shall have effect as if enacted in the National Insurance Act 1911 and a committee acting temporarily as the insurance committee for the borough shall for all the purposes of that Act be deemed to be the insurance committee for the borough.

13. In the event of His Majesty's Government introducing into Parliament a bill for extending the county of London so as to include therein the borough the Corporation shall not oppose such bill with regard to the extent of the area proposed to be thereby included in that county.

Corporation
not to oppose
extension of
London on
certain
grounds.

PART III.

SUPERANNUATION AND PROVIDENT FUND.

14.—(1) It shall be lawful for the Corporation to establish in manner hereinafter provided a superannuation and provident fund for the provision of payments or other allowances on death superannuation resignation retirement or discharge to persons in the employment of the Corporation being contributors to such fund.

Superannua-
tion fund.

(2) The Corporation may prepare and approve by resolution a scheme or schemes for the establishment of such fund and may determine in and by any such scheme the following matters and things or any of them (that is to say):—

(a) What classes of persons shall be entitled to contribute to and participate in the benefit of the fund and to what extent such contribution shall be payable by

A.D. 1914.
—

persons in the service of the Corporation provided that no officer or servant in the service of the Corporation at the passing of this Act shall be obliged to contribute to the fund except with his consent:

- (b) The division of the persons contributing to and to be benefited by the fund into one or more classes according to the amount of salary or according to such other conditions as the Corporation shall determine power being reserved by the scheme to remove any contributor from one class to the other provided that no such removal shall place the contributor or his representatives in a worse position than he or they would have occupied if the removal had not been made:
- (c) What (if anything) shall disqualify any person in the employment of the Corporation from becoming a contributor to the fund and participating in the benefits thereof:
- (d) Under what circumstances any person having been a contributor to the fund shall cease to continue a contributor and to be entitled to participate in the benefits thereof:
- (e) What proportion (if any) of his own contributions to the fund any person having been but voluntarily ceasing to be a contributor thereto shall be entitled to receive:
- (f) What proportion (if any) of the additions made by the Corporation to the fund in respect of the contributions of any member shall be payable to the representatives of such member in the event of his dying before he becomes entitled to any benefit under the scheme on superannuation resignation or retirement:
- (g) The percentage or proportion not exceeding without the consent of the Local Government Board four pounds per centum of their salaries or wages which shall be payable to the fund by the contributors:
- (h) The percentage or proportion not exceeding without the consent of the Local Government Board four pounds per centum of the salaries or wages of the contributors to the fund which shall be payable to the fund by the Corporation:

- (i) The maximum salaries or wages on which the percentages or proportions aforesaid shall be payable by contributors and the Corporation :
- (j) As to whether any and what proportion of any bonus commission or emolument payable to or receivable by a contributor to the fund shall be taken into account for the purpose of the scheme :
- (k) The age at which or other circumstances in which a person shall become entitled to benefit under any scheme so that no person not incapacitated by illness shall be entitled to benefit (except by way of return of his own contributions with interest under subsection (3) of this section) at a less age than sixty :
- (l) What part (if any) of his own contributions to the fund with interest thereon may be advanced by the Corporation out of the fund to a contributor in case of illness temporarily incapacitating him and the rate of interest payable by such contributor for the advance and the time when such advance shall be repayable :
- (m) The payment to a person entitled to benefit under any scheme either by way of a gross sum or by way of an annuity or partly by way of a gross sum and partly by way of annuity :
- (n) The rate not exceeding three pounds ten shillings per centum at which interest whether simple or compound shall be calculated in respect of the moneys contributed to the fund by the contributors and by the Corporation respectively :
- (o) The management and direction of the fund and the number of and mode of appointment of a committee for administering and managing the same and the powers to be conferred upon the committee with respect to such administration and management and whether any and if any what persons other than members of the Corporation should form part of or be associated with the said committee for the purposes of the administration and management of the fund :
- (p) The securities upon which the moneys received on account of the fund shall from time to time be invested :

A.D. 1914.
—

(*q*) And generally all such other matters and things in relation to the fund as the Corporation shall deem fit and proper to form part of and to be included in such scheme.

(3) Any scheme under this section shall provide as follows:—

(*a*) Any contributing member retiring from the service of the Corporation before superannuation bonâ fide of his own accord and not to escape dismissal shall be entitled to receive back the whole amount of his own contributions to the fund with interest as aforesaid and shall have no further claim upon the fund:

(*b*) Any contributing member dismissed the service of the Corporation or who retires from the service to escape dismissal for misconduct or neglect of duty which does not involve pecuniary loss to the Corporation shall be entitled to receive back the whole amount of his own contributions to the fund without interest and shall have no further claim upon the fund:

(*c*) Any contributing member dismissed the service of the Corporation or retiring from the service to escape dismissal for fraud or dishonesty or misconduct or neglect of duty which involves pecuniary loss to the Corporation shall at the discretion of the Corporation forfeit all or any part of his contributions and lose all benefits from the fund except such return (if any) as may at such discretion be made to him out of his own contributions:

(*d*) Any contributing member leaving the service of the Corporation in consequence of any reduction or alterations in the establishment or whose services are discontinued from any cause other than fraud or dishonesty or misconduct or neglect of duty shall be entitled to receive back the whole amount of his own contributions to the fund with interest thereon and such percentage or proportion of the contributions of the Corporation to the fund as may be determined by the scheme:

(e) The legal personal representatives of any contributing member who (not having been guilty of fraud or dishonesty or misconduct or neglect of duty which involves pecuniary loss to the Corporation) shall die before he becomes entitled to any benefit under the scheme on resignation or retirement shall be entitled to receive back the whole contributions of such member with interest as aforesaid and such percentage or proportion of the contributions of the Corporation to the fund as may be determined by the scheme.

(4) Any contributing member who shall become entitled to benefit under any scheme shall be entitled—

(i) If by way of a gross sum to a sum equal to the whole amount of his own contributions to the fund with interest as aforesaid and such percentage or proportion of the contributions of the Corporation in respect of such member to the fund with interest as may be determined by the scheme:

(ii) If by way of an annuity to an annuity equal in amount to such an annuity as could be purchased from the post office by means of a sum equal to the whole amount of his own contributions to the fund with interest as aforesaid and such percentage or proportion of the contributions of the Corporation in respect of such member to the fund with interest as may be determined by the scheme:

(iii) If partly by way of a gross sum and partly by way of an annuity the gross sum and the annuity taken together shall be equal in value to the whole amount of his own contributions to the fund with interest as aforesaid and such percentage or proportion of the contributions of the Corporation in respect of such member to the fund with interest as may be determined by the scheme Provided that for the purpose of ascertaining such value the value of the benefit taken by way of an annuity shall be the amount which would have been expended in purchasing the annuity from the post office.

(5) The Corporation before or at any time after approving any scheme under this Part of this Act may by resolution determine that the same shall be submitted to actuarial report

A.D. 1914. — and in any such case the scheme and the state of the fund shall forthwith and thereafter every five years be submitted for investigation and report to any actuary being a fellow either of the Institute of Actuaries or of the Faculty of Actuaries of Scotland appointed by them and approved by the Chief Registrar of Friendly Societies and such actuary shall make an actuarial valuation of the fund and on the basis of such valuation shall certify whether any and if so what addition to the benefits prescribed in the last preceding subsection of this section may be made from the fund so that the fund as constituted under the scheme may be solvent without further contribution or payment by the Corporation other than the percentage or proportion of the salaries or wages of the contributors to the fund paid to the fund from time to time by the Corporation and any contributing members who shall become entitled to benefit during the then ensuing quinquennial period shall be entitled to the additional benefit so certified. Provided that such additional benefit shall have relation to the length of service of or to the amount of contribution by or in respect of the member entitled thereto or to both of such matters as the Corporation may decide.

(6) A copy of any scheme made by the Corporation under this Part of this Act and also a copy of every report issued by any actuary under the provisions of the last preceding subsection of this section shall be forwarded by the Corporation to the Chief Registrar of Friendly Societies and the Corporation shall also forward in each year to the said Chief Registrar a copy of the last annual accounts of the fund.

(7) The Corporation shall supply a copy of any scheme in force under this Act at a price not exceeding sixpence to any person in the employment of the Corporation interested in the fund or the representatives of any such officer or servant in case of death and shall supply gratuitously to every officer or servant or other person having an interest in the fund a copy of the last annual balance sheet of the same for the time being.

(8) All contributions of the Corporation to the fund shall be paid out of the same fund or rate as the salary or wage of the contributing member in respect of whom the same are paid.

(9) In the event of the moneys standing to the credit of the fund being at any time inadequate for the payment to

contributing members of the sums to which they will be entitled under the provisions of the scheme the amount of any deficiency shall from time to time be made good by the Corporation. A.D. 1914.

(10) The Corporation may also out of the borough fund or borough rate pay any salaries costs and expenses of the management and administration of the fund and of and incidental to investments.

(11) It shall be lawful for the Corporation from time to time to enter into and carry into effect any contract with any company carrying on the business of life assurance or provident fund for the undertaking by such company of the liabilities of the Corporation under any scheme or schemes made under this Part of this Act or any of them.

(12) It shall be lawful for the Corporation from time to time on the recommendation of the committee for administering or managing the fund but subject to the provisions of this Act to alter any portion of any scheme or make any new scheme in lieu of a scheme made under the provisions of this Act but no contributor nor the representatives of any contributor shall by reason of any such alteration be placed in any worse position than if the alteration had not been made.

(13) If any person becomes entitled to benefit under any scheme by way of annuity the Corporation may purchase for and in the name of such person a post office or other Government annuity of an amount equal to the annuity to which such person may be so entitled and thereupon all liability of the Corporation to such person in respect of such annuity shall cease.

15.—(1) For the purpose of this Part of this Act teachers who at the passing of this Act are or hereafter shall be permanently and exclusively employed by the Corporation as the local education authority for the borough or are permanently and exclusively employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not) or are permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purpose of Part II of the Education Act 1902 (any such teacher in this section being referred to as “the teacher”) shall be deemed to be persons in the employment of the Corporation whom or some As to teachers.

A.D. 1914.

of whom (according to their qualifications or conditions of service or otherwise) the Corporation may in their discretion determine to be a class or classes of persons entitled to contribute to and participate in the benefit of any fund established under the provisions of this Part of this Act and upon any such determination such provisions shall apply accordingly. Provided that in exercising their discretion under this subsection the Corporation shall not differentiate between classes of teachers on the ground alone that any such class is composed of persons employed in public elementary schools provided by them or in public elementary schools not so provided.

(2)—(a) In the application of the provisions of this Part of this Act to any teacher to whom the Elementary School Teachers' (Superannuation) Acts 1898 to 1912 (in this section called "the said Acts of 1898 to 1912") applies the amount of the benefits to accrue to the teacher upon retirement under such provisions shall be complementary to the amount of the deferred annuity to which the teacher is entitled and of the superannuation allowance which may be granted to the teacher under the said Acts of 1898 to 1912 and the contributions to be made to the fund by or in respect of such teacher shall be calculated upon the amount of his salary or wages less such part or proportion or fixed sum as the Corporation shall determine so to be requisite in order to make the benefit to accrue in respect of such contributions under the provisions of this Part of this Act and the total amount of annuity and allowance received by the teacher under the said Acts of 1898 to 1912 together equal to the amount which he would have been entitled to receive upon his retirement under this Part of this Act if the said Acts of 1898 to 1912 did not apply to him and the benefit to accrue to the teacher under this Part of this Act shall be in proportion to contributions so made :

(b) For the purpose of giving effect to the provisions of this subsection the Corporation shall by resolution from time to time determine the part proportion or fixed sum to be deducted as aforesaid from the salary or wages of the teacher :

(c) If at any time hereafter by reason of the passing of any general Act of Parliament whether in this or in any subsequent session of Parliament any teacher who is not at the date of this Act entitled to annual payments whether by way of annuity

or superannuation allowance or otherwise from any source other than the superannuation fund shall become so entitled or the annual payments to be made to any teacher by way of deferred annuity or superannuation allowance or otherwise from any source other than the superannuation fund under this Part of this Act are materially increased the Corporation shall by an amending resolution make such provision as shall be necessary to meet the altered circumstances Any such resolution shall reduce proportionately the part, proportion or amount of the salary (if any) in respect of which contributions are thereafter to be made by the teacher under the scheme:

A.D: 1914.

(d) No part of any benefit or superannuation allowance received by any teacher from the superannuation fund shall be deemed to be paid out of or received from public money within the meaning of the said Acts of 1898 to 1912 or any rules made thereunder or otherwise.

(3) In the application of the provisions of this Part of this Act to any teacher who being entitled so to do did not accept the said Acts of 1898 to 1912 the Corporation may in their discretion restrict his interest in and benefit under the said provisions to such interest and benefit as he would have been entitled to if he had been a teacher to whom the said Act did apply and who had accepted the same.

16. The following provisions shall have effect with respect to every sum by way of pension superannuation allowance gratuity and allowance (in this section referred to as a "grant") payable by the Corporation to any person (in this section referred to as the "pensioner") :--

Assignment
&c.

(1) Every assignment of and charge on a grant and every agreement to assign or charge a grant shall except so far as made for the benefit of the family of the pensioner be void and on the bankruptcy of the pensioner the grant shall not pass to any trustee or other person acting on behalf of the creditors :

(2) Where any parochial relief is given to a pensioner or to any one whom he is liable to maintain the Corporation may pay the whole or any part of the grant to the guardians or other authority giving the relief and the same when so paid may be applied in repayment of any sums expended in such relief and

A.D. 1914.
—

subject thereto shall be paid or applied by the guardians or other authority to or for the benefit of the pensioner :

- (3) If the pensioner neglects to maintain any person whom he is liable to maintain the Corporation may in their discretion pay or apply the whole or any part of the grant to or for the benefit of that person :
- (4) If the pensioner appears to the Corporation to be insane or otherwise incapacitated to act the Corporation may pay so much of the grant as the Corporation think fit to the institution or person having the care of the pensioner and may pay the surplus (if any) or such part thereof as the Corporation think fit for or towards the maintenance and benefit of the wife or relatives of the pensioner :
- (5) On the death of a pensioner to whom a sum not exceeding one hundred pounds is due on account of a grant then if the Corporation so direct probate or other proof of the title of the personal representative of the deceased may be dispensed with and the sum may be paid or distributed to or among the persons appearing to the Corporation to be beneficially entitled to the personal estate of the deceased pensioner or to or among any one or more of those persons or in the case of the illegitimacy of the deceased pensioner as the Treasury may direct and the Corporation and any officer of the Corporation making the payment shall be discharged from all liability in respect of any such payment or distribution :
- (6) If the total estate of any deceased pensioner of the Corporation after deduction of debts and funeral expenses exceeds one hundred pounds any moneys which may under the provisions of the last preceding subsection of this section be paid or distributed by the Corporation to or among any person or persons other than the legal personal representative of such deceased pensioner shall notwithstanding such payment or distribution be for the purposes of estate duty treated as passing under the will or intestacy of the deceased pensioner :

- (7) The Corporation before paying or distributing any moneys due to any deceased pensioner to or among any person or persons other than the legal personal representative of such deceased pensioner shall require— A.D. 1914.

Where the total estate of the deceased pensioner including the amount of such moneys does not after deduction of debts and funeral expenses exceed the value of one hundred pounds a declaration to that effect by the claimant or one of the claimants or other the person or persons to or among whom the Corporation see fit to pay or distribute such moneys;

Where the total estate of the deceased pensioner including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable:

- (8) Any sum payable to a minor on account of a grant may be paid either to the minor or to such person and on such conditions for the benefit of the minor as to the Corporation seem expedient:
- (9) Where a payment is made to any person by the Corporation in pursuance of this section the receipt of that person shall be a good discharge for the sum so paid:
- (10) The Corporation may with the consent of the Local Government Board make rules with respect to declarations to be taken for any purpose relating to grants payable by them and while any such rules so made are in force a person shall not be entitled to receive any sums in respect of a grant payable by the Corporation until any declaration required by those rules has been made Any person who makes a wilful misstatement of material fact in any such declaration shall be liable on summary conviction to

A.D. 1914.
—

a fine not exceeding fifty pounds or to imprisonment with or without hard labour not exceeding three calendar months.

Repeal of
provisions as
to thrift
fund.

17. Sections 97 to 104 (relating to the establishment of a thrift fund) both inclusive of the Act of 1898 are hereby repealed.

PART IV.

ELECTRICITY.

Electrical
fittings.

18.—(1) The Corporation may subject to the provisions of this section sell let for hire and fix repair and remove but shall not manufacture lamps meters electric lines fuses switches lamp-holders motors and other electrical fittings for lighting motive or other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may make such charges and such terms and conditions as may be agreed upon.

(2) The Corporation shall not themselves execute the wiring of private property except between the main of the Corporation and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the wiring of private property provided that the contractor acts independently of the Corporation in the execution of the contract The Corporation shall not sell any such electrical fittings except through a contractor carrying on his business independently of the Corporation.

(3) Any electrical fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose possession the same may be Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

(4) Provided as follows :—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet the sum properly chargeable for the costs and expenses incurred by them under the powers of this section in connection therewith (including

interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

A.D. 1914.

- (b) The sums properly chargeable and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Corporation for that year:
- (c) Every sum charged by the Corporation to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer.

19.—(1) The Corporation may on the application of the owner or occupier of any premises within the area of supply abutting on or erected or being erected in any street laid out or made but not dedicated to public use supply such premises with electrical energy and may lay down take up alter relay repair remove and renew in across along or out of such street such electric lines and apparatus as may be requisite or proper for furnishing such supply and the provisions of the East Ham Electric Lighting Order 1898 and of the Electric Lighting Acts 1882 to 1909 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Corporation under the powers of this section.

Power to lay electric lines &c. in streets not dedicated to public use.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company or belonging to and forming the approach to any dock or wharf of the Port of London Authority or within the enclosure or fences of any dock premises belonging to such authority nor shall the Corporation in carrying out the works authorised by this section obstruct or interfere with the convenient access to any such street.

20.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Corporation or be given by the consumer personally at the office of the electrical engineer to the Corporation.

Notice to discontinue supply of electricity.

A.D. 1914.
—

(2) Notice to the effect of this section shall be endorsed upon any demand note for charges for electricity.

Power to
refuse to
supply elec-
trical energy
in certain
cases.

21. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a bonâ-fide dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Period of
error in de-
fective
meters.

22.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding period of the year in respect of which the account for electricity supplied to such consumer is rendered unless it be proved to have first arisen during the then current period.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

As to ex-
penses and
receipts.

23.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act relating to the supply of electricity and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of section 7 (Expenses of local authority) and section 8 (Power of local authority to borrow money) of that Act shall extend and apply accordingly to such expenses.

(2) Any moneys received by the Corporation under the said provisions shall be applied in manner provided by section 52 (Application of revenue) of the East Ham Electric Lighting Order 1898 which was confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1898 except capital moneys which shall be applied in manner provided by section 53 (Application of capital moneys) of the said Order.

PART V.

A.D. 1914.
—

STREETS AND BUILDINGS.

24.—(1) (a) No person shall erect or bring forward any wooden structure fence hoarding or other similar structure (in this section referred to as “structure”) on any land in any street in respect of which the Corporation have prescribed a building line under the provisions of the Public Health Acts or any byelaws made thereunder or of the East Ham Improvement Act 1898 in front of the building line so prescribed or in any other street beyond the general line of buildings therein to or of a greater height than six feet six inches:

As to hoardings and similar structures.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and may recover the expense incurred by them in so doing from the offender.

(2)—(a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing:

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the date of this Act for a period of five years from the passing thereof and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his

A.D. 1914. use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

Street bins.

25. The Corporation may provide and maintain in the streets of the borough bins for sand and gravel or other materials and orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine.

Courts to be flagged and drained.

26.—(1) The owner or owners of the premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall flag asphalte concrete or pave such court yard or passage or any part thereof and make a drain through or along the same or such part thereof as the Corporation require and keep such flagging asphalting concreting or paving and drain in good repair.

(2) If such owner or owners shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners and such premises shall stand and remain charged to the like extent and effect as under section 257 of the Public Health Act 1875 with the amount of such expense together with interest thereon at the rate of five pounds per centum per annum from the date of service of a demand for the same till payment thereof.

(3) The provisions of this section are in addition to and not in derogation of the provisions of section 13 (Flagging streets) of the Act of 1903.

Byelaws as to building materials.

27. The Corporation may make byelaws with respect to the thickness and construction of the walls of all ovens and furnaces wholly or partially built after the passing of this Act.

Penalty on occupier refusing execution of Act.

28. If the occupier of any house or property or part of a house or property shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part

of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. A.D. 1914.

29. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling house) belonging to and used and occupied by a railway company as part of or in connection with their railway under any Act of Parliament or belonging to and used and occupied by the Port of London Authority as a part of or in connection with their undertaking under any Act of Parliament. Saving as to railway companies and Port of London Authority.

30. Nothing in this Part of this Act or in any byelaw to be made thereunder shall apply to any building structure or erection (not being a dwelling house) belonging to the Gas Light and Coke Company or to the Metropolitan Water Board and used by them respectively as a part of or in connection with their respective undertakings under any Act of Parliament. Exemption for Gas Light and Coke Company and Metropolitan Water Board from this Part of Act.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

31. The provisions of section 34 (Power for Privy Council to make orders relative to dairies cowsheds and milkshops) of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Corporation under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the borough for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets. Provisions as to retailers of milk.

A.D. 1914.

Persons to
furnish
names of
laundrymen
to whom
clothes from
infected
houses are
sent.

32.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 (Notification of infectious disease) of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

33.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Cleansing of
verminous
persons.

34.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleaning and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case on the like certificate may cause any such person who does not consent or whose parent or guardian (where the person is a child) does not consent to be removed therefrom to any such temporary shelter or house accommodation where two

justices on the application of the Corporation and on being satisfied of the necessity of the removal make an order for the removal subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person. A.D. 1914.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such order the Corporation may and in case of an order of the justices shall make compensation to him for any loss he may suffer thereby.

(4) For the purpose of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose.

35.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate may if they think fit make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order.

Removal of persons suffering from pulmonary tuberculosis to hospital.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion make good any probable financial loss falling upon the relatives of or those actually dependent upon any person so suffering occasioned by

A.D. 1914. — the removal of any such person to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the before-mentioned loss and shall not make an order unless they are satisfied that the Corporation will make good such loss.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper the order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force within the borough at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by provisional order made by the Local Government Board and confirmed by Parliament which order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875.

Exemption
of Port of
London.

36. This Part of this Act shall not apply within the Port of London.

Public notice
to be given
of provisions
of this Part
of Act.

37.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulated in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

A.D. 1914.

38. Any expenses of the execution by the Corporation of this Part of this Act shall be defrayed out of the district fund and general district rate.

Expenses of this Part of Act.

PART VII.

FINANCIAL AND RATING PROVISIONS.

39.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenues funds and rates mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the fourth column thereof (namely):—

Power to borrow.

1	2	3	4
Purpose.	Amount.	Charge.	Period for Repayment.
(a) For or in respect of the payment of any sum or sums payable by the Corporation under Part II of this Act including the purchase in the name of the Corporation of any annuity payable by them under the said Part II or the schedule to this Act which annuity the Corporation are hereby empowered to purchase.	The sum requisite.	The borough fund and borough rate.	Thirty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate and district fund and general district rate.	Five years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act:

A.D. 1914.

(b) In order to secure the repayment of the money borrowed under this subsection and the payment of the interest thereon the Corporation may mortgage or charge such fund rate or revenue as the Local Government Board may prescribe:

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 38 (Power to use one form of mortgage for all purposes) of the Act of 1903 as amended by the section of this Act of which the marginal note is "Amendment of section 38 of Act of 1903."

Section 234
of Public
Health Act
1875 not to
apply.

40. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Mode of
raising
money.

41. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions of
Public
Health Act
1875 as to
mortgages to
apply.

42. Subject to the provisions of section 38 (Power to use one form of mortgage for all purposes) of the Act of 1903 the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Section 236 (Form of mortgage).

Section 237 (Register of mortgages).

Section 238 (Transfer of mortgages).

Mode of
payment off
of money
borrowed.

43. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them

and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing. A.D. 1914.

44.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either— Sinking fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with the accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1914.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local

Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed. A.D. 1914.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

45. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Corporation not to regard trusts.

46.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorize the appointment of a receiver shall be not less than five hundred pounds in the whole. Appointment of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

47. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall Expenses of execution of Act.

A.D. 1914. — be defrayed by the Corporation out of the borough fund or the district fund as the Corporation may in their discretion having regard to the object of the expenditure deem just.

Power to
re-borrow.

48.—(1) The Corporation shall have power—

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid, within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 90 (Power to re-borrow) of the Act of 1898 and section 30 (Power to re-borrow) of the Act of 1903 are hereby repealed but without prejudice to anything done or suffered to be done thereunder.

49. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them or a reserve or other fund they may (in addition to any other powers for the time being vested in them) invest such sinking fund or reserve or other fund and the interest on the investments of such sinking fund in statutory securities.

A.D. 1914.
Power to invest all sinking funds in statutory securities.

50. The following provisions of the Act of 1903 shall with any necessary modifications and subject as regards mortgages granted under the provisions of section 38 (Power to use one form of mortgage for all purposes) of the Act of 1903 as amended by the section of this Act of which the marginal note is "Amendment of section 38 of Act of 1903" to the provisions of that section extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application of provisions of Act of 1903.

Section 33 (Protection of lender from inquiry).

Section 34 (Application of moneys borrowed).

Section 37 (Receipt in case of persons not sui juris).

51. Section 38 (Power to use one form of mortgage for all purposes) of the Act of 1903 shall be read and have effect as if "the revenues of the Corporation" as defined by the section of this Act of which the marginal note is "Interpretation" were therein mentioned instead of "the revenues of the Council" wherever these words occur in that section.

Amendment of section 38 of Act of 1903.

52.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were

A.D. 1914.
—

raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

- (b) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by section 38 (Power to use one form of mortgage for all purposes) of the Act of 1903 as amended by the section of this Act of which the marginal note is "Amendment of section 38 of Act of 1903" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

- (a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund:
- (b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:
- (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

53.--(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

A.D. 1914.
Returns to
Local
Government
Board as to
sinking
funds.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order

A.D. 1914. — mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(3) Section 36 (Annual return to Local Government Board) of the Act of 1903 is hereby repealed.

As to temporary borrowing.

54.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a municipal or sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their electricity and tramway undertakings respectively and after the commencement of such year it shall be lawful for the Corporation to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in each case an amount equal to one fourth of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking in respect of which it is borrowed as the same may be specified in the resolution of the Corporation authorising such borrowing *pari passu* with any Corporation stock bond or mortgage affecting the same and it shall further be lawful for the Corporation to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve Provided that—

(a) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within two months after the expiration of such financial year:

(b) The treasurer shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require:

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Corporation have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

A.D. 1914.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and fourteen unless they shall have been continued by Act of Parliament or provisional order made by the Local Government Board and confirmed by Parliament which order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

55.—(1) The Corporation may if they think fit in lieu of themselves making assessing and levying any general district rate order such rate to be made assessed and levied in the same manner as a borough rate and may enforce the payment thereof from the overseers in the same manner as in the case of the borough rate and if any such order be made by the Corporation the general district rate shall (subject as hereinafter provided) be made assessed and levied by the overseers in the same manner and under the same provisions (including the provisions as to appeals) as in the case of the poor rate but subject to the exemptions (partial or otherwise) for the time being applicable to such general district rate in respect of any property in the borough and such rate may be assessed and levied either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rate:

General district rate may be assessed as borough rate.

Provided that nothing to be done under this section shall operate to deprive any railway company of the benefit of the provisions of section 211 of the Public Health Act 1875 or any other enactment for the time being in force with respect to the assessment of any land used as a railway constructed under the powers of any Act of Parliament:

A.D. 1914.

Provided also that the demand note served upon any railway company for any such rate shall show distinctly on the face of it the respective assessments as well as the actual rates proposed in each case to be levied.

(2) In the event of the Corporation making any order in pursuance of this section—

(a) Any other rate for the time being leviable by the Corporation and any electricity charges (including meter rents) payable to the Corporation may be included with the poor rate (but distinguished therefrom) in any book or books of assessments and in one demand note. The demand note shall be in such form as the Local Government Board may approve :

(b) The overseers shall recover and enforce the poor rate in the same manner as the general district rate is recoverable and enforceable under the Public Health Act 1875 and the provisions of section 2 (In default of distress for nonpayment of rates justices may issue warrant of commitment) of the Distress for Rates Act 1849 with respect to the recovery and enforcement of the poor rate shall cease to apply. Provided that any provisions limiting the period within which proceedings must be commenced for the recovery of the general district rate in a court of summary jurisdiction shall not apply to the poor rate.

(3) The expenses of the overseers in connection with the assessment levying and collection of the general district rate shall be paid out of the district fund.

Owner may be rated instead of occupier in certain cases.

56. On an order being made by the Corporation in pursuance of the section of this Act whereof the marginal note is "General district rate may be assessed as borough rate" the following provisions shall apply and have effect (that is to say) :—

(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the poor borough and general district rates leviable within the borough—

(a) Where the rateable value of the property does not exceed eight pounds; or

(b) Where the premises are let in separate apartments; or A.D. 1914.

(c) Where the rents are collected weekly:

Provided that the owner so rated shall be entitled to a deduction of not exceeding seventeen and a half per centum from the amount of the rates when paid by him if he shall pay the same within one month after the rate shall have been made or within fourteen days after the same shall have been demanded whichever shall be the later:

(2) When the Corporation exercise the option under this section of causing the owner to be rated instead of the occupier they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner accordingly and the provisions of this section shall apply within the borough in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 and in section 211 (Assessment &c. of general district rate) of the Public Health Act 1875:

(3) Unless and until the Corporation exercise the option given to them by this section the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 as amended by the Local Government Act 1894 shall remain in operation and shall extend and apply to the general district rate (in substitution for the said provisions of section 211 of the Public Health Act 1875) in like manner as they apply to the poor rate.

PART VIII.

WORKMEN'S COMPENSATION FUND.

57. The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the common law the Employers' Liability Act 1880 the Workmen's Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be formed by

Power to
create acci-
dent fund.

A.D. 1914. — annually appropriating thereto such sums out of any of their revenues as they may from time to time deem expedient and such sums shall be invested at compound interest in or upon statutory securities and accumulated until the same shall amount to the sum of ten thousand pounds. Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of ten thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

PART IX.

MISCELLANEOUS PROVISIONS.

Application
of Baths and
Washhouses
Acts to
public baths.

58. Subject to the provisions of the Act of 1898 and of this Act the public baths for the erection of which the Corporation were empowered to borrow money under the provisions of section 82 (Power to borrow) of the Act of 1898 shall be deemed to have been erected under and subject to the provisions of the Baths and Washhouses Acts 1846 to 1899 and subject as aforesaid the provisions of those Acts shall with any necessary modifications apply to such public baths.

Use of swim-
ming baths
for exhibi-
tions and
entertain-
ments.

59. The Corporation may close to the public and may reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or person (either gratuitously or for payment) for swimming contests practices or exhibitions of aquatic exercises or for any other entertainment or for meetings and may demand and take or authorise to be demanded and taken such sums for the exclusive use of such baths or for admission of persons thereto as they may think fit. Provided that (subject to the provisions of the section of this Act of which the marginal note is "Use of swimming baths during winter") no such swimming bath shall be closed under the powers of this section before six o'clock in the evening for more than six hours on any one day nor more than two days in each week but after six o'clock in the evening such bath may be closed on such days as the Corporation may in their absolute discretion determine.

Use of
swimming
baths during
winter.

60. The Corporation may from the first day of October to the first day of May close and cover over any swimming bath

belonging to them and utilise or from time to time let the same for the purposes of a rifle-range or for meetings or entertainments of any description or for any other purposes free from any restriction contained in the Baths and Washhouses Acts 1846 to 1899 or any Act amending the same. A.D. 1914.

61. The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institution of a similar character any sum not exceeding in the whole two hundred pounds per annum. Power to Corporation to subscribe to hospitals &c.

62. The provisions of the following sections of the Public Health Act 1875 (namely):— Confirmation of byelaws.

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

63. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

64. All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk. Consent of Corporation to be in writing.

A.D. 1914.

As to breach
of conditions
of consent of
Corporation.

65. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

In executing
works for
owner Cor-
poration
liable for
negligence
only.

66. Whenever the Corporation or the surveyor or other duly authorised officer of the Corporation under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or other such officer as aforesaid or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportion-
ment of ex-
penses in
case of joint
owners.

67. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

As to
notices.

68.—(1) Where any notice or demand under this Act or under any local Act provisional order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local

Act provisional order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business. A.D. 1914.

69. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

70.—(1) Proceedings for the recovery of any demand made under the authority of this Act or under the authority of the Act of 1898 or the Act of 1903 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

(2) Section 51 (Recovery of sums under fifty pounds) of the Act of 1903 is hereby repealed.

71. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk. Informations by whom to be laid.

72. All penalties recovered on the prosecution of the Corporation or any officer of the Corporation on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer and be by him carried to the credit of the borough fund or to such other fund as the Corporation shall direct. Penalties to be paid over to treasurer.

73. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for Compensation &c. how to be determined.

A.D. 1914. — such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Judges not disqualified.

74. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any local Act for the time being in force in the borough by reason of his being liable to any rate.

Incorporation of certain sections of Act of 1903.

75. The following sections of the Act of 1903 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely) :—

Section 49 (Damages and charges to be settled by justices).

Section 52 (As to appeal).

Section 53 (Inquiries by Local Government Board).

Application of section 265 of Public Health Act 1875.

76. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall with any necessary modifications extend and apply to the purposes of this Act as if the same were re-enacted herein.

Saving for indictment &c.

77. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Crown rights.

78. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Powers of Act cumulative.

79. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

80. The costs charges and expenses preliminary to and of A.D. 1914.
and incidental to the preparing applying for obtaining and Costs of
passing of this Act as taxed by the taxing officer of the House Act.
of Lords or of the House of Commons shall be paid by the
Corporation out of the borough fund or borough rate and out
of the district fund or general district rate or out of money to
be borrowed under the powers of this Act for that purpose.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.